

**Placer County Superior Court
10820 Justice Center Drive, Roseville**

**PROBATE CALENDAR NOTES
August 31, 2026, 8:30 AM, Department 2
101 Maple Street, Auburn**

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NOTICE: CHANGE OF CALENDAR DEPARTMENT AND DATES

Beginning July 6, 2026, the Probate Calendar will be heard Mondays, 8:30 a.m., in Department 2, located at the Historic Courthouse, 101 Maple Street, Auburn.

These calendar notes are provided pursuant to Local Rule 80.1.4 for the probate calendar set for hearing **August 31, 2026, 8:30 AM, in Department 2**, the Hon. Glenn M. Holley, presiding.

Pursuant to Local Rule 80.1.4, these calendar notes are not a tentative ruling on the merits of any matter before the court. Remote appearances are generally available for this calendar, as provided in the Local Rules. Local Rule 10.24(G), governing remote appearances for most probate, conservatorship, and guardianship cases applies to this calendar.

Updated notes may be posted at any time and will generally be updated prior to the hearing. Staff may respond to limited questions concerning calendar notes; however, court staff may not give legal advice to parties or attorneys. Messages may be left for the Office of Legal Research at (916) 408-6119.

1. S-PR-0010430 Josiah Pickett Spec Needs Trust; In re the

1st SNT account

Appearance is required for continued hearing on 1st SNT account.

2d SNT account

Appearance is required for continued hearing on 2d SNT account.

3d SNT account

Appearance is required for hearing on 3d SNT account.

Missing notice of hearing. Missing service of notice of hearing.

Clarification is needed: the 3d account shows the trust purchased a vehicle. Such a purchase is ordinarily scheduled as a change in the form of assets. If title was taken in the name of beneficiary, the purchase appears to be an improper distribution; if title was taken in the name of a third party, the purchase appears to be an improper gift of trust assets. If title remains in the trust, the trust continues to hold a valuable corpus, bond remains required, and future accounts will be required.

In light of the low value of estate cash reserves, it is recommended total reasonable attorney fees and costs for all accounts be fixed at \$15,000.00.

2. S-PR-0012062 In Re the Estate of Trocha, Robert John

Missing waiver of personal representative fees by Madison Trocha, former joint personal representative of the estate.

Clarification is needed: the estate is a non-cash estate. Petitioner should show how requested attorney fees are to be paid. The court will not ordinarily approve fees where there are no assets to pay fees.

3. S-PR-0012117 In Re the Estate of Lewis, Edward

Appearance is required for continued hearing on petition for final distribution.

Missing corrected I&A referred to in ¶ 8 of the petition.

Clarification is needed: the estate is a non-cash estate. Petitioner should show how requested attorney fees are to be paid. The court will not ordinarily approve fees where there are no assets to pay fees.

The request to approve distribution of the estate must be denied. Petitioners admit distributing the entirety of the estate contrary to decedent's will (which limits distribution to decedent's trust) and to the underlying trust (under which Steven Lewis's trust share is preserved for his children (see Art. 12 §§ 1–2). See also Declaration of Harake, filed June 20, 2023, at 1:26–28. The court should not authorize testate distribution contrary to the controlling testamentary instruments.

It is recommended the petition be deemed one to terminate administration under Prob.C. § 12251 as there are no assets in the estate from which to award fees or which can

be distributed to any person. After termination of administration, the parties would be free to address any outstanding concerns (such as fees) as they may privately determine.

4. S-PR-0012567 In Re the Estate of Petruncola, David William

Petition for final distribution is recommended for approval as prayed.

5. S-PR-0012970 In Re the Lee-Tong Trust & Ching Y Lee Bypass Trust

Appearance is required for continued hearing on petition re breach of trustee duty and for other relief.

6. S-PR-0013137 In Re the Estate of Keaton, Lee Russell

Clarification is needed: the report schedules show sale of coins, knives, airgun pellets and similar items, solar panels, yard items, Hot Wheels, and many other items which were never inventoried to the estate. All assets of the estate must be inventoried and appraised as required by law.

7. S-PR-0013381 In Re the Marie Mickle Rev Trust

Petition to compel trustee account and for other relief

Appearance is required for continued hearing on petition to compel trustee account and for other relief.

Request / petition re disclosure of information by former trustee and for temporary restraining order

Appearance is required for hearing on request / petition re disclosure of information by former trustee and for other relief.

Missing notice of hearing. Missing proof of service of notice of hearing.

Request to release subpoenaed records to petitioner

It appears this request was previously granted and is now moot.

Damages hearing

Appearance is required for hearing as previously ordered.

8. S-PR-0013389 In Re the Estate of Gossell, Stevan M.

Petition for final distribution is recommended for approval as prayed.

9. S-PR-0013390 In Re the Astleford Rev Liv Trust

Appearance is required for continued hearing on petition to determine trust terms and for other relief.

Current status is needed.

10. S-PR-0013396 In Re the Estate of Giannulias, Demetrios A.

Appearance is required for hearing on 2d amended petition for final distribution.

Court determination is needed as to the sufficiency of service of notice of hearing. Petitioner alleges that devisee Demitra Economou "has been unresponsive" and cannot be located, suggesting petitioner believes she does not have a good mailing address for Demitra. Missing C.R.C. 7.52 declaration of efforts to locate Demitra.

If notice issues are resolved to the court's satisfaction, it is recommended the petition be denied, as follows.

Petitioner inventoried the entirety of a certain real property to the estate. However, petitioner attached a deed to her declaration filed September 3, 2025, showing record title of said property is held by petitioner and decedent as tenants in common. Legal title is presumed to be as stated in the deed unless petitioner can overcome the presumption by clear and convincing evidence. Evid.C. § 662. No such evidence is offered, requiring that only an undivided 1/2 interest to be inventoried to this estate. Petitioner appears to further argue that the property should not be considered an estate asset because she did not intend to convey a property interest to decedent when the October 2004 deed was executed and recorded. No petition to determine title to the property has been filed. See Prob.C. § 850 et seq.

Alternatively, petitioner requests the court authorize distribution of the estate property to petitioner in light of purported disclaimers of interest by Andrea Giannulias and Chrisopher Economou and by disregarding the rights of Demitra Economou under decedent's will. The purported disclaimers by Andrea and Christopher each recite that disclaimant acquired knowledge of his or her interest in the estate on February 25, 2025; however, each disclaimer was not executed until January 2026, automatically taking it out of the presumptions of Prob.C. § 279(a)(1) and (d). The burden of establishing that the disclaimers are timely falls on disclaimants. Prob.C. § 279(f).

Even if there were timely disclaimers, the effect is to cause each disclaimant's share to pass as though disclaimant had predeceased. Under decedent's will, the share of a predeceased devisee passes to the devisee's issue, not to petitioner as prayed.

Finally, petitioner offers no legal grounds to disregard the testate rights of Demitra who, petitioner concedes, has not attempted to disclaim her interest in any event.

The requested distribution solely to petitioner is thus not supported legally or factually.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

11. S-PR-0013488 In Re the Estate of Harden, Shannon

Petition for final distribution is recommended for approval as prayed.

12. S-PR-0013956 In Re the Estate of Brady, Michael Wallace

Appearance is required for continued hearing on petition to administer estate.

Missing notice of hearing for petition to administer estate. Missing proof of service of notice of hearing. Missing proof of publication of notice of hearing.

Clarification is needed: decedent's name is spelled *Micheal* throughout the petition and the will, but *Michael* on the attached death certificate, without explanation.

Missing required allegations at ¶ 5a(3)–(4) (RDP), (5)–(6) (child(ren)), (7)–(8) (issue of predeceased child(ren)).

Clarification is needed: ¶ 8 identifies two surviving children of decedent; however, ¶¶ 6f & 7b(2)(d) both allege decedent was not survived by issue.

Missing personal representative address (¶ 3h(2)).

Will is not self-proving; proof of will is needed. Witness statements are not a declaration (insufficient under C.C.P. § 2015.5) or affidavit (no jurat).

Note: missing signed Duties form (DE-147). Clerk cannot issue letters until signed Duties form is filed. C.R.C. 7.150.

If substantial attention to calendar notes is not apparent prior to the hearing, it is recommended this matter be dropped from calendar.

13. S-PR-0013958 In Re the Estate of Bain, Gregory David

Missing proof of publication of notice of hearing for amended petition. C.R.C. 7.53.

Missing name of proposed special administrator (¶ 2b). Clarification is needed as to why only special administration is requested (¶ 2b(4)).

14. S-PR-0014090 In Re the Bruce W & Celia L Broadwell Fam Trust

Appearance is required for continued hearing on petition to determine trust property.

Notices of hearing filed July 21, 2026, refer to a September 28 hearing. The court minutes from the prior hearing record that the court continued the matter to August 28, and it was later rescheduled to August 31. Notice of hearing filed August 11, 2026, was not timely served for the August 31 hearing date (30 days' service is required). Prob.C. § 851(d).

15. S-PR-0014157 In Re the Estate of Amrine, Daniel Owen

Missing proof of publication of notice of hearing for petition to administer estate.

Missing required allegations at ¶ 5a(7)–(8) (issue of predeceased child(ren)).

Missing relationship of proposed administrator to decedent. ¶ 3b(2)(c).

Note: missing signed Duties form (DE-147). The clerk cannot issue letters until signed Duties form is filed. C.R.C. 7.150.

16. S-PR-0014158 In Re the Estate of Juge, Blanche Cecilia

Missing notice of hearing for petition to administer estate. Missing service of notice of hearing.

Missing publication of sufficient notice of hearing. Notice of hearing as published relates only to an August 28 hearing that was rescheduled by the court, rendering publication ineffective. Petitioner was notified of the revised hearing date by clerk's notice dated June 8. New publication is needed.

Court determination is needed as to request to probate lost will. Prob.C. § 6124.

17. S-PR-0014163 In Re the Estate of Shade, Larry Leo

Missing notice of hearing for petition to administer estate. Missing service of notice of hearing. Missing proof of publication of notice of hearing.

Missing any request for appointment of a personal representative (¶ 2b).

Missing request for bond or request to waive bond (¶ 2d).

Missing allegations re character of decedent's estate (¶ 3d).

Missing required allegations at ¶¶ 5a(3)–(4) (RDP), (7)–(8) (issue of predeceased child(ren)), and 5b (step- or foster child(ren)).

Clarification is needed: ¶¶ 6a & 7a allege no surviving issue; ¶18 identifies 3 children of decedent. Children of decedent are issue of decedent.

Note: missing signed Duties form (DE-147). The clerk cannot issue letters until signed Duties form is filed. C.R.C. 7.150.

18. S-PR-0014165 In Re the Estate of Unhassobiscay, Jean

Missing notice of hearing for petition to administer estate. Missing service of notice of hearing. Missing proof of publication of notice of hearing.

Missing allegations at ¶ 5a(5)–(6) (child(ren)) and 6 (successors where no spouse / child(ren)).

It is recommended this matter be continued to be November 9, 2026, 8:30 a.m., in Department 2, to be heard with the competing petition to administer estate.

19. S-PR-0014166 In Re the Estate of Faries, Barbara Sue

Missing notice of hearing for petition to administer estate. Missing service of notice of hearing. Missing proof of publication of notice of hearing.

Court determination is needed as to request that non-witnessed document be found to be decedent's will under Prob.C. § 6110(c)(2).

Clarification is needed: proposed will nominates David Faries to serve as executor jointly with petitioner. Petitioner does not explain why the petition does not proposed joint appointment.

Note: missing signed Duties form (DE-147). The clerk cannot issue letters until signed Duties form is filed. C.R.C. 7.150.

20. S-PR-0014168 In Re the Estate of Naus, Bruce Michael

Missing sufficient notice of hearing. Notice of hearing as filed, served, and published, erroneously states that the hearing will be in Department 40 at the Hon. Howard G. Gibson Courthouse in Roseville. The hearing is scheduled in Department 2 at the Historic Courthouse in Auburn. Revised notice, service, and publication are needed.

Missing required allegations at ¶ 5b (step- or foster child(ren)).

Missing waiver of bond by Holly Naus.

21. S-PR-0014170 In Re the Estate of Nelson, Shirley J.

Missing notice of hearing for petition to determine succession to primary residence. Missing service of notice of hearing, including service to Cherie Grant, Sherrieh Gunn, and Shunita Gunn.

Missing Attachment 11 (legal description (with APN) of purported primary residence). See ¶ 11.

Missing required allegations at ¶ 13 (claimed interest in property). Missing any allegations establishing that claimed property was primary resident of decedent.

Missing typewritten transcription of purported holographic will.

Missing required allegations at ¶ 9a(1)–(2) (spouse), (3)–(4) (RDP), (7)–(8) (issue of predeceased child(ren)).

22. S-PR-0014174 In Re the Estate of Crawley, David Alan

Missing sufficient notice of hearing, service of notice of hearing, and publication for petition to administer estate. Notice of hearing as filed, served, and published relates only to an August 28 hearing that was rescheduled by the court, rendering such notice ineffective. Petitioner was notified of the revised hearing date by clerk's notice dated June 8. New notice, service (or waiver(s)), and publication are needed.

23. S-PR-0014232 In Re the Estate of Blair, Jeremiah D.

Missing sufficient service of notice of hearing. Proof of service filed August 7 shows service by petitioner. Service must be completed by a person who is not a party to the action.

Missing copy of the will attached to the petition. Prob.C. § 8002(b)(1).

The will lodged with the court but not attached to the petition directs the estate to decedent's living trust. Missing declaration of trust terms. Local Rule 80.2.1.

24. S-PR-0014293 In Re the Estate of Malone, Nathaline Rose

Petition to determine succession to primary residence is recommended for approval as prayed.